

Calendar Line # 3
Case Name Janae Scales et al vs Ford Motor Company et al
Case No. 24CV454891
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary adjudication against plaintiffs Janae Scales and Brandon Scales’ fifth cause of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> This action stems from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”) by plaintiffs Janae Scales and Brandon Scales (collectively, “Plaintiffs”) against defendants Ford Motor Company (“Ford”) and Gosch Ford Temecula. According to the Complaint, Plaintiff purchased a 2020 Ford Expedition under warranty on May 20, 2020 (“Subject Vehicle”). (Complaint, ¶ 7). Before Plaintiff purchased the Subject Vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the “Transmission Defect”). (<i>Id.</i> at ¶ 24). Plaintiff alleges the following causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford filed the instant motion for summary adjudication on July 15, 2026. On June 17, 2026, the court granted Ford’s <i>ex parte</i> application to advance the hearing on Ford’s motion from January 12, 2027 to August 27, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)). “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (<i>Aguilar, supra</i>, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (<i>Id.</i> at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (<i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 540). Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary

adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. PROCEDURAL ISSUES

A. PLAINTIFF’S REQUEST FOR A CONTINUANCE

At the end of their opposition, Plaintiffs claim that the court should continue the hearing under Code of Civil Procedure section 437c, subdivision (h) to permit Plaintiffs to complete discovery of Ford’s pre-lease knowledge.

Under Code of Civil Procedure section 437c, subdivision (h), a court shall order a continuance to permit further discovery if “it appears from the affidavits submitted in opposition to a motion for summary adjudication that facts essential to justify opposition may exist but cannot, for reasons stated, be presented. . .”

The opposing party’s affidavits or declarations in support of a request to continue the hearing should show the following: facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; the specific reasons why such evidence cannot be presented at the present time; an estimate of the time necessary to obtain such evidence; and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (See *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420 [declaration that “additional information and testimony” required to “adequately respond to Defendant’s Motion” insufficient; *Johnson v. Alameda County Med. Ctr.* (2012) 205 Cal.App.4th 521, 532 [declaration stating “discovery is reasonably necessary to determine who” may be responsible for injury “insufficient to support a continuance”]).

Plaintiffs have not supplied the court with any affidavits indicating why a continuance is justified. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 [stating only that “further discovery or investigation is contemplated” is not sufficient]). Upon review of the record, Plaintiffs did not oppose Ford’s June 16, 2026 *ex parte* application to advance the hearing date of the present motion. Plaintiffs had weeks to request a continuance from the court before filing the opposition but failed to do so. (*Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1350, 1353 [no abuse of discretion in denying request where plaintiff “failed to request a continuance of the summary judgment motion hearing at any time prior to the hearing itself, not to mention prior to the deadline for opposing the motion”]).

Plaintiffs’ request for continuance is denied.

B. PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE

Plaintiffs’ request for judicial notice of four Technical Service Bulletins (“TSBs”) published on the website of the National Highway Traffic Safety Administration (“NHTSA”) is denied. Plaintiffs do not cite authority permitting the court to take judicial notice of the truth of the TSBs’ contents. Plaintiffs’ citation to *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606 is inapposite because, there, the appellate court took judicial notice of a website showing the Department of Transportation’s structure and definition of “mass transportation.” The TSBs are information reported by Ford; the contents do not represent an “official act” of the NHTSA nor are they not reasonably subject to dispute. (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”]; see also *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193 [taking judicial notice of existence, but not contents of webpage]). While the court may take judicial notice of the fact that the TSBs were published on NHTSA’s website, the court cannot take judicial notice of the hearsay statements therein.

C. FORDS EVIDENTIARY OBJECTIONS

Ford submitted evidentiary objections to the declarations of plaintiff Janae Scales and Plaintiffs’ counsel, Jacob

Lister. The court declines to rule on these objections, which are preserved, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q)).

IV. ANALYSIS

Ford moves for summary adjudication of Plaintiffs' fifth cause of action for fraudulent inducement-concealment on the ground that Plaintiffs have no evidence that Ford knew of and concealed the Transmission Defect.¹

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). "[A] defendant cannot simply 'argue' that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative 'showing' that the plaintiff *cannot* do so." (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, italics original). When relying on "factually devoid" discovery responses, the defendant must show that "discovery was sufficiently comprehensive, and plaintiffs' responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses]." (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

In contending Plaintiffs have no evidence of Ford's prior knowledge of the Transmission Defect, Ford offers Plaintiffs' discovery response as support.

On September 22, 2025, Plaintiffs responded to Ford's special interrogatories, which required each Plaintiff to "state all facts", "identify all persons", and "identify all documents" supporting their fraudulent concealment claim. (Ford's Separate Statement of Undisputed Material Facts ["SSUMF"], Nos. 6, 8). Plaintiffs responded by referencing their allegations within the Complaint, their 114-page document production, and vaguely referring to Ford's "agents, representatives, and employees[.]" (See e.g., Declaration of Hailey M. Rogerson, Exh. C, p. 16-19). The 114-page document production consists of the lease and sales contract for the Subject Vehicle, various repair orders, insurance and registration information, and the payment history for the Subject Vehicle. (SSUMF, No. 12). None of the documents predate Plaintiffs' May 20, 2020 purchase of the Subject Vehicle. Neither Plaintiff's discovery responses nor the document production proves the necessary elements to support a claim for fraudulent inducement-concealment. Ford therefore meets its initial burden.

In opposition, Plaintiffs fail to meet their burden of demonstrating a triable issue of material fact. Plaintiffs rely on repair orders that reference Ford TSBs (TSB 22-2145, TSB 23-2250, and TSB 24-2101) to demonstrate Ford's prior knowledge of the Transmission Defects. Plaintiffs do not include these TSBs as part of the record. Instead, Ford provides these TSBs alongside their reply to demonstrate that even if they had been included, they would not demonstrate a triable issue of material fact concerning Ford's prior knowledge of the Transmission Defect. Specifically, all three TSBs were published after Plaintiffs had already purchased the Subject Vehicle. (Reply Declaration of Hailey M. Rogerson, Exhs. A-C).² In any event, the TSBs are not proper matters for judicial notice and "[a] TSB is not and cannot fairly be construed by a trial court as an admission of a design or other defect,

¹ While the Notice of Motion and Motion for Summary Adjudication also states that Ford makes its motion on the ground that Plaintiffs have no evidence that the Subject Vehicle was manufactured with a "Battery Defect", the supporting memorandum of points and authorities only argues that Plaintiffs have no evidence that Ford knew of and concealed the Transmission Defect.

² The court has discretion to consider supplemental evidence submitted with the reply, if the evidence fills gaps in evidence created by the opposition. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538).

because TSBs are routinely issued to dealers to help diagnose and repair typical complaints.” (*American Honda Motor Co., Inc. v. Super. Ct.* (2011) 199 Cal.App.4th 1367, 1378).

Plaintiffs cite *Santana v. FCA, US, LLC* (2020) 56 Cal.App.5th 334, 345 (*Santana*) and *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 (*Dhital*) to support their contention that Ford’s pre-sale knowledge is a question of fact that cannot be resolved on summary judgment. *Santana* is unavailing for Plaintiffs because the *Santana* court expressly focused on evidence dated prior to the plaintiff’s purchase of his vehicle. (*Santana, supra*, 56 Cal.App.5th at p. 345 [“Santana purchased his vehicle in November 2011. The focus of our inquiry, therefore, is what the evidence disclosed regarding Chrysler’s knowledge of the defect prior to November 2011.”]). Here, Plaintiffs have produced no evidence that preexisted the May 20, 2020 purchase of the Subject Vehicle. And *Dhital* concerned a demurrer, rather than a motion for summary adjudication. (*Dhital, supra*, 84 Cal.App.5th at pp. 832-833).

Given the foregoing, the court grants Ford’s motion

V. CONCLUSION

Based on the foregoing, the Court GRANTS Ford’s motion for summary adjudication of the fifth cause of action for fraudulent concealment – inducement. The Court will prepare the formal Order.

Calendar Line # 4

Case Name William Backstrand et al vs Vincent Braga et al

Case No. 25CV456790

Motion for Terminating Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident on January 27, 2023 at the intersection of Webster and Tennyson Avenue in Palo Alto. Plaintiffs William Backstrand and Alden Backstrand (collectively “Plaintiffs”) filed a Complaint on January 17, 2025 against the Defendants Vicent Braga and Bethany Kay (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 9, 2026, the Court (Hon. Jose Franco) heard Defendants Motion to Compel Responses to Interrogatories and Demand for Inspection and Request for Monetary Sanctions against the Plaintiffs. Defendants assert that on February 24, 2025, it served Plaintiffs with Form Interrogatories (“FROG”) (Set One), Special Interrogatories (“SPROG”) (Set One), and Demand for Inspection (Set One), and request for sanctions. No opposition papers were filed by the Plaintiffs. After the hearing, the Court granted the Defendants’ motion to compel answers to FROG, SPROG, and Demand for Inspection, set one, and ordered Plaintiffs to served verified answers within 20 days. The Court granted the Defendants’ motion for sanctions, and awarded sanctions in the amount of \$780.00, which the Plaintiffs were ordered to pay within 30 days. The formal Order was executed on May 6, 2026 by the Honorable Franco and filed on May 7, 2026.

C. PRESENT MOTION

On July 8, 2026, Defendants filed this motion for terminating sanctions. The motion was accompanied by a proof of service indicating electronic service to Plaintiffs’ counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of